

Person Filing:_____

Address (if not protected):_____

City, State, Zip Code:_____

Telephone:_____

Email Address:_____

Lawyer's Bar Number:_____

For Clerk's Use Only

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Case Number: _____

Petitioner/Party A

ATLAS Number: _____
(if applicable)

Respondent/Party B

DECREE OF DISSOLUTION OF A NON-
COVENANT MARRIAGE WITH MINOR
CHILDREN

THE COURT FINDS:

1. This case has come before this Court for a final Decree of Dissolution of Marriage. The Court has taken all testimony needed to enter a Decree, or the Court has determined testimony is not needed to enter the Decree.
2. This Court has jurisdiction over the parties under the law and the children under the provisions of A.R.S. § 25-1301. The provisions of this Decree are fair and reasonable under the circumstances and are in the best interests of the minor child(ren) as to authority for legal decision-making, parenting time, and support.
3. 90 DAY REQUIREMENT: At the time this action was filed, one or both parties had lived in, or been stationed in Arizona while a member of the United States Armed Forces, for more than 90 days.
4. Conciliation and Covenant Marriage: The provisions of A.R.S. § 25-381.09 relating to Conciliation Court either do not apply or have been met. This marriage is not a covenant marriage.

5. Irretrievably Broken: The marriage is irretrievably broken.
6. Issues of Minor Children, Child Support and Spousal Maintenance, Division of Property and Debt: Where it has the legal power and where it is applicable to the facts of this case, this Court has considered, approved, and made Orders relating to issues of legal decision-making, parenting time, child support, spousal maintenance (alimony), and the division of property and/or debts.

7. THIS DECREE APPLIES TO THE FOLLOWING MINOR CHILD(REN):

Name	Date of Birth
_____	_____
_____	_____
_____	_____
_____	_____

☐ Same information for additional children listed on attached page made part of this document by reference.

8. Pregnancy and Paternity:

- ☐ Party A is not pregnant, OR
- ☐ Party A is pregnant, and Party B ☐ IS OR ☐ IS NOT a parent of the child.
- ☐ Party B is not pregnant. OR
- ☐ Party B is pregnant and Party A ☐ IS OR ☐ IS NOT a parent of the child.
- ☐ Party A and Party B are the legal parents of the following child(ren) born to the parties before the marriage:

Name(s)	Date(s) of Birth
_____	_____
_____	_____
_____	_____
_____	_____

9. Spousal Maintenance/Support:

☐ Party A, OR ☐ Party B

- ☐ Lacks sufficient property, including property apportioned to the spouse, to provide for that spouse's reasonable needs.
- ☐ Lacks earning ability in the labor market that is adequate to be self-sufficient.
- ☐ Is the parent of a child whose age or condition is such that the parent should not be required to seek employment outside the home.
- ☐ Has made a significant financial or other contribution to the education, training, vocational skills, career, or earning ability of the other spouse or has significantly reduced that spouse's income or career opportunities for the benefit of the other spouse.
- ☐ Had a marriage of long duration and is of an age that may preclude the possibility of gaining employment adequate to be self-sufficient.

10. Parent Information Program:

- A. Party A ☐ has attended the Parent Information Program as evidenced by the Certificate of Completion in the Court file. OR
Party A ☐ has not attended the Parent Information Program and ☐ shall be denied any requested relief to enforce or modify this decree until Party A has completed the class.
- B. Party B ☐ has attended the Parent Information Program as evidenced by the Certificate of Completion in the Court file. OR
Party B ☐ has not attended the Parent Information Program and ☐ shall be denied any requested relief to enforce or modify this decree until Party B has completed the class.

11. Domestic Violence:

If there has been domestic violence between the parties and legal decision-making is to be shared with or awarded to a parent who has committed an act of domestic violence, check appropriate box and explain. (A.R.S. § 25-403.03)

A. ☐ Domestic Violence has not occurred between the parties;

OR

B. ☐ Domestic Violence has occurred between the parties, but:

1. ☐ It was mutual (committed by both parties), (see A.R.S. § 25-403.03(D))

OR

2. ☐ Neither party has committed an act of ***significant domestic violence*** (pursuant to A.R.S. § 13-3601); there has not been a ***significant history of domestic violence*** between the parties; and it is otherwise still in the best interests of the minor child(ren) to grant joint or sole legal decision-making to a parent who has committed domestic violence because: (Explain)

12. Drug Or Alcohol Conviction Within Last Twelve Months:

- ☐ Party A has been convicted of driving under the influence of alcohol or drugs, or was convicted of any drug offense within 12 months of filing the request for legal decision-making.
- ☐ Party B has been convicted of driving under the influence of alcohol or drugs, or was convicted of any drug offense within 12 months of filing the request for legal decision-making.
- ☐ The legal decision-making and/or parenting time arrangement ordered by this Court appropriately protects the minor child(ren).

13. Child Support: The Court finds that Party A and Party B owe a duty to support the child(ren) listed above. The required financial factors and any discretionary adjustment pursuant to the Arizona Child Support Guidelines are as set forth in the Child Support Worksheet attached hereto and incorporated by reference.

14. Legal Decision-making Authority for Minor Child(ren): (Check/complete only if legal decision-making authority is contested or joint legal decision-making is ordered.)

- ☐ The legal decision-making authority order or agreement is in the best interests of the minor child(ren) for the following reasons: (List the reasons.)

REASONS: _____

15. Supervised or No Parenting Time: (Check and complete if applicable.) (Check and complete only if supervised parenting time or no parenting time is ordered.)

☐ Supervised Parenting Time between the minor children and ☐ Party A OR
☐ Party B

OR

☐ No Parenting Time by ☐ Party A OR ☐ Party B, is in the best interests of the minor child(ren), for the following reasons: (Explain the reasons)

REASONS: _____

16. Community Property and Debt:

☐ The parties did not acquire any community property or debt during the marriage, OR

☐ There IS an agreement as to division of community property and debt; all community property and debt is divided pursuant to this Decree.

☐ There is NO agreement as to division of community property and debt, but all community property and debt is divided pursuant to this Decree.

17. Separate Property and Debt:

☐ The parties did not acquire any separate property or debt during the marriage, OR

☐ There IS an agreement as to division of separate property and debt; all separate property and debt is divided pursuant to this Decree.

☐ There is NO agreement as to division of separate property and debt, but all separate property and debt is divided pursuant to this Decree.

THE COURT ORDERS:

1. MARRIAGE IS DISSOLVED: The marriage of the parties is dissolved, and the parties are restored to the legal status of single persons.

2. NAME RESTORATION:

☐ Party A's name is restored to _____. (Put only the last name here.) Party A's date of birth is _____.

☐ Party B's name is restored to _____. (Put only the last name here.) Party B's date of birth is _____.

3. ENFORCEMENT OF TEMPORARY ORDERS: All obligations ordered to be paid by the parties in Temporary Orders dated (fill in dates of ALL temporary orders here)

are satisfied in full OR

☐ judgment is awarded against the party with the obligation up to the amount due and owing as of the date of this Decree, with the highest legal interest allowed by law, for the total amount of \$ _____.

4. PREGNANCY AND PATERNITY

☐ A child who is common to the parties is expected to be born this date:

The orders below as to legal decision-making, parenting time, child support, and medical insurance/expenses do not include this child; the Court reserves jurisdiction to address these issues regarding this child when the child is born.

a. CHILDREN: This Decree includes all minor children common to the parties as follows:

NAME(S) OF MINOR CHILD(REN)

DATE(S) OF BIRTH

b. ☐ PATERNITY: Party A and Party B are declared to be the parents of the minor children named below, born before the marriage:

Children Born BEFORE the Marriage

DATE(S) OF BIRTH

☐ FOR ANY ABOVE-NAMED MINOR CHILD BORN IN THE STATE OF ARIZONA, THE CLERK OF SUPERIOR COURT SHALL FORWARD A COPY OF THIS ORDER TO THE OFFICE OF VITAL RECORDS, WHICH IS ORDERED TO AMEND THE BIRTH CERTIFICATE(S) AS FOLLOWS:
(List full names of the party as appears on the party's Social Security card or other government issued official document and as should appear on the children's birth certificate(s))

1. Add the name: (List one name only)

--	--	--

as a parent on the above-named minor child(ren)'s birth certificate(s) if no name is already listed.

2. NAME CHANGE: (Optional) The names of one or more of the minor children for whom paternity has been established above shall be changed as follows:

Current Legal Name

New Name (optional)

c. Minor Child(ren) to Whom This Decree Does Not Apply:

It is ordered that ☐ Party A ☐ Party B has no legal obligation or right to the minor child(ren) born during the marriage but not common to the parties. These minor children include: (Use additional paper if necessary)

Name

Date of Birth

Child expected to be born this date: _____

5. PRIMARY RESIDENCE, PARENTING TIME, and AUTHORITY FOR LEGAL DECISION-MAKING

a. PRIMARY RESIDENCE:

☐ In accord with the Parenting Plan signed by both parties NEITHER parent's home is designated as the primary residence, OR

☐ Party A's home is designated the primary residence of: _____

☐ Party B's home is designated the primary residence of: _____

SUBJECT TO PARENTING TIME AS FOLLOWS:

b. PARENTING TIME:

☐ Reasonable parenting time rights as described in the Parenting Plan submitted with and made a part of this Decree. By submitting the Parenting Plan with this Order, the Parenting Plan becomes part of the final Order and carries the same legal weight as any other order of this Court. OR

☐ NO PARENTING TIME RIGHTS to ☐ Party A OR ☐ Party B, OR

☐ SUPERVISED PARENTING TIME to ☐ Party A OR ☐ Party B according to the terms of the Parenting Plan attached as Exhibit B and made part of this Decree. Parenting time may only take place in the presence of another person, named below or otherwise approved by the Court.

No Parenting Time or Supervised Parenting Time is in the best interests of the child(ren) because: (Explain) _____

(If supervised) Name of supervisor: _____

The cost of supervised parenting time will be paid by the:

☐ The party being supervised,

☐ The party having legal decision-making, OR

☐ Shared equally by the parties

Restrictions on parenting time (if applicable): _____

c. AUTHORITY FOR LEGAL DECISION-MAKING:

1. ☐ SOLE AUTHORITY CONCERNING LEGAL DECISION-MAKING for the minor children is awarded to:

☐ Party A, OR ☐ Party B,

OR

2. ☐ JOINT LEGAL DECISION-MAKING: Party A and Party B agree to act as joint legal decision makers regarding the minor child(ren), pursuant to A.R.S. § 25-403, and as set forth in the Joint Legal Decision-making Agreement and Parenting Plan signed by both parties and attached to this Decree as "Exhibit B." There having been no significant acts of Domestic Violence by either parent, or the Court having found it in the best interests of the minor child(ren), the Court adopts the terms of the Joint Legal Decision-making Agreement and Parenting Plan, which is attached to and made part of this Decree.

6. CHILD SUPPORT:

☐ The Child Support Order, _____, is attached hereto and incorporated by reference. (date of order)

☐ Party A, OR ☐ Party B shall pay child support to the other party in the amount of \$ _____ per month PAYABLE THE FIRST DAY OF THE MONTH after the date this Decree is signed by the judge until further order of the Court.

7. SPOUSAL MAINTENANCE/SUPPORT:

a. ☐ Neither party shall pay spousal maintenance/support (alimony) to the other party,

OR

b. ☐ Party A, OR ☐ Party B is ordered to pay the other party the sum of \$ _____ per month in spousal maintenance/support BEGINNING THE FIRST DAY OF THE MONTH after the date this Decree is signed. Each payment shall be made by the first day of each month after that and shall continue until the receiving party is remarried or deceased or until (date)

_____.

- ☐ This is a deviation from the amount recommended under the Spousal Maintenance Guidelines. The Court finds that this amount is more appropriate or just.

Reason(s) for deviation:

All payments shall be made through the Support Payment Clearinghouse PO Box 52107, Phoenix, Arizona 85072-7107 by income withholding order until all required payments have been made under this Decree. All spousal maintenance payments are governed by the applicable federal and state tax laws. It shall terminate upon the death of either party or remarriage of receiving party.

Spousal maintenance modification:

- ☐ The spousal maintenance award shall be modifiable in accordance with Arizona law,

OR

- ☐ The spousal maintenance award shall NOT be modifiable for any reason.

- ☐ Attachment: The required A.R.S. 25-319(B) financial factors and any discretionary adjustment pursuant to the Arizona Spousal Maintenance Guidelines are set forth in the Spousal Maintenance Worksheet and are attached hereto and incorporated herein by reference.

8. PROPERTY, DEBTS AND TAX RETURNS:

- a. ☐ Party A is ordered to pay all debts unknown to Party B, AND
☐ Party B is ordered to pay all debts unknown to Party A, AND
☐ Each party is ordered to pay his or her debts from the following date:

- b. ☐ Other orders and relief relating to property or debt are contained in Exhibit A, which is attached and incorporated into this Decree.
- c. ☐ Each party is assigned his or her separate property and Party A must pay his/her separate debt, and Party B must pay his/her separate debt.
- d. ☐ This Decree can be used as a transfer of title and can be recorded. Parties shall sign all documents necessary to complete all transfer of title ordered in this Decree, such as motor vehicles, houses, and bank accounts. The parties shall transfer all real and personal property as described in Exhibit A to the

other party on or before _____ by 5:00 p.m.

If the party required to transfer the property has not transferred the property to the party entitled to receive the property on or before the date and time listed above, the party entitled to receive the property is entitled upon application to a Writ of Assistance or Writ of Execution to be issued by the Clerk of Superior Court commanding the sheriff to put him or her in possession of the property.

- e. ☐ For previous calendar years, pursuant to IRS rules and regulations, the parties will file:
- ☐ joint federal and state income tax returns and hold the other harmless from half of all additional income taxes and other costs, if any, and each will share equally in any refunds, OR
- ☐ separate federal and state income tax returns. AND,
- ☐ This calendar year and continuing thereafter, each party will file separate federal and state income tax returns. AND,

9. FINANCIAL INFORMATION EXCHANGES: The parties shall exchange financial information (tax returns, spousal affidavits, earning statements and/or other related financial statements) every twenty-four months. Each party shall give the other party all necessary documentation to file all tax returns.

10. OTHER ORDERS. (List any other orders.)

Case Number: _____

FINAL APPEALABLE ORDER. There are no further matters that remain pending before the court and this judgment is a final order under Rule 78(c) of the Arizona Rules of Family Law Procedure.

DONE IN OPEN COURT: _____.

JUDGE OR COURT COMMISSIONER

If this Decree was issued as a “Default,” and the papers to begin this case were served by any means other than by publication, a copy of this Decree shall be mailed or delivered to the responding party within 24 hours of the Court hearing as follows:

Name: _____

Mailing Address: _____

City, State Zip Code: _____

By: _____

Date: _____

EXHIBIT A: PROPERTY AND DEBTS

1. DIVISION OF COMMUNITY PROPERTY (property acquired during the marriage)

☐ Award each party the furniture, furnishings, artwork, collectibles, appliances, cookware, and related items of personalty in his/her possession.

☐ Community property is awarded to each party as follows:
2. LIST OF COMMUNITY PROPERTY (Be very specific in your description of the property.)

	AWARD TO:	
	Party A	Party B
Household furniture / furnishings: (Be specific.)		
_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐
Appliances: (Be specific.)		
_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐
Video: TV /DVD /VCR: (Be specific)		
_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐
Audio: Stereo/ Radio: (Be specific)		
_____	☐	☐
_____	☐	☐
Computers and Related Equipment: (Be specific)		
_____	☐	☐
_____	☐	☐
_____	☐	☐

COMMUNITY PROPERTY

AWARD TO:
Party A Party B

Other Electronics: (Be specific)

☐	☐
☐	☐

Motor Vehicles:

Year, Make, Model: _____

Last 4 digits of VIN # _____

Year, Make, Model: _____

Last 4 digits of VIN # _____

Year, Make, Model: _____

Last 4 digits of VIN # _____

☐	☐
☐	☐
☐	☐
☐	☐

Cash, bonds of \$ _____

Other: _____

Other: _____

Other: _____

Other: _____

☐	☐
☐	☐
☐	☐
☐	☐

☐ Continues on attached page.

3. DIVISION OF RETIREMENT, PENSION, DEFERRED COMPENSATION

WARNING. You should see a lawyer about your retirement, pension, deferred compensation, 401k plans and/or benefits. If you do not see a lawyer regarding these assets, you risk losing any interest you have in these plans and/or benefits. There are certain documents the plan administrator must have. Only a lawyer can help you prepare these documents.

☐ Neither party has a retirement, pension, deferred compensation, 401K Plan and/or benefits.

OR

☐ Award each party his/her interest in any and all retirement benefits, pension plans, or other deferred compensation described as:

OR

☐ Each party WAIVES AND GIVES UP his/her interest in any and all retirement benefits, pension plans, or other deferred compensation of the other party:

4. DIVISION OF REAL PROPERTY (Land and Buildings) Section A is for one piece of property. Section B is for another, separate property.

A. Real property located at (address) _____

The legal description of this property, as quoted from the DEED to the property* is:

*If you do not provide a correct legal description, you may have to come back to court to amend the Decree to include the correct legal description.

The real property ("A") described above is awarded as the sole and separate property of:

☐ Party A or ☐ Party B OR

☐ Shall be sold and the proceeds divided as follows:

_____ % or \$ _____ to Party A.

_____ % or \$ _____ to Party B.

B. Real property located at (address) _____

The legal description of this property, as quoted from the DEED to the property* is:

*If you do not provide a correct legal description, you may have to come back to court to amend the Decree to include the correct legal description.

The real property ("B") described above is awarded as the sole and separate property of:

☐ Party A or ☐ Party B

OR

☐ Shall be sold and the proceeds divided as follows:

_____ % or \$ _____ to Party A.

_____ % or \$ _____ to Party B.

☐ Continues on attached page.

5. DIVISION OF COMMUNITY DEBT (Debts incurred during the marriage) (You should see a lawyer about how to divide secured and unsecured debts.)

Community debts shall be divided as follows:

Creditor Name	Amount Owed	Amount to be paid by Party A	Amount to be paid by Party B
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$

☐ Continues on attached page.

6. ☐ Any debts or obligations incurred by either party before the date of separation, that are not identified in the list above or attached, shall be paid by the party who incurred the debt or obligation, and that party shall indemnify and hold the other party harmless from such debts.
7. SEPARATE PROPERTY. (Property acquired before the marriage or by gift or bequest to one party.)

Property recognized as the separate property of the Party A or Party B, is assigned below:

Description	Value	To Party A	To Party B
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐

8. SEPARATE DEBT: (Debt acquired before the marriage.)

Debt recognized as the separate debt of the Party A or Party B, is assigned below:

Creditor Name	Debt Amount	Party A Pays	Party B Pays
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐